

(3) Nothing in this section shall authorise any scheme to be made—

- (a) with respect to a charity the endowments of which are applicable solely for educational purposes ; or
- (b) with respect to any charity until the expiration of forty years from the date of the foundation thereof, and, in the case of a charity founded before the passing of this Act, by a donor or several donors any one of whom is living at the passing of this Act, until the death of the surviving donor or donors unless with the consent of such donor or donors.

2. This Act shall apply to the county of London as if it were a municipal borough, but shall not apply within the city of London. Application to London.

3. This Act may be cited as the Charitable Trusts Act, 1914, and shall be construed as one with the Charitable Trusts Acts, 1853 to 1894, and together with those Acts may be cited as the Charitable Trusts Acts, 1853 to 1914. Short title.

CHAPTER 57.

An Act to amend Part II. of the National Insurance Act, 1911. [10th August 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The following condition shall be substituted for the first of the statutory conditions set out in section eighty-six of the National Insurance Act, 1911 (hereinafter referred to as the principal Act), namely—

Amendment of statutory conditions with respect to previous employment.

“(1) that he proves that not less than ten contributions have been paid by him under this Part of this Act” :

Provided that the substitution shall not take effect as respects any claim made before the passing of this Act.

(2) The proviso to the first paragraph in the Eighth Schedule to the principal Act shall have effect as if after the words “reaches the age of eighteen” there were inserted the words “or as regards the fulfilment of the first statutory condition for the receipt of unemployment benefit.”

2.—(1) Provision may be made by regulations under Part II. of the principal Act for allowing any claim or question which is reported or referred to a court of referees to be proceeded with in the absence of any member or members of that court other than the chairman, but only if the claimant or the person or association in whose case the question arises consents, and in

Provisions as to courts of referees.

such case the court shall, notwithstanding anything in the principal Act, be deemed to be properly constituted, and the chairman shall, if the number of members of the court is an even number, have a second or casting vote.

(2) The time within which notice requiring an insurance officer to report a matter to a court of referees for their consideration may be given shall be twenty-one days from the time when the decision of the insurance officer is communicated to the person affected thereby, or such extended time as the Board of Trade may in any particular case for special reasons allow.

(3) Where upon a recommendation by a court of referees unemployment benefit is in accordance with paragraph (e) of subsection (1) of section ninety-one of the principal Act, and the regulations made thereunder, paid during any period intervening between the claim for the benefit and the final determination of the claim, the benefit shall, except where such regulations otherwise prescribe, and notwithstanding that the final determination is adverse to the claim, be treated as having been duly paid, and shall not be recoverable from the workman under subsection (5) of section one hundred and one of the principal Act or otherwise.

(4) Proviso (b) to subsection (1) of section eighty-eight of the principal Act, which relates to the power of an insurance officer to refer claims and questions to courts of referees, shall have effect as if for the words "who shall in each case determine the question, and the decision of the court of referees shall be final and conclusive," there were substituted the words "and thereupon the provisions of the last foregoing proviso shall apply as if he had reported the matter to the court."

Determination
of questions by
umpire.

3.—(1) Where any question arises under Part II. of the principal Act whether a person is a workman within the meaning of that Part, the question shall be decided in the like manner as a question whether a workman is a workman in respect of whom contributions are payable under that Part, or whether a trade in which a workman is employed is an insured trade, and the provisions of Part II. of the principal Act relating to the determination of such questions and the consequences of decisions thereon, and requiring any such questions to be referred to the umpire, shall apply accordingly.

(2) Where, in pursuance of regulations made by the Board of Trade under Part II. of the principal Act, a decision has been obtained from the umpire that contributions under that Part are not payable in respect of any workman, or class of workmen, and the umpire certifies that he has subsequently revised such decision so as to make contributions payable in respect of such workman, or class of workmen, or any of them, contributions shall be so payable only from the date when the decision was so revised.

(3) Subsections (3) and (4) of section eighty-eight of the principal Act shall apply to all proceedings before the umpire whether under that section or under any other provision of Part II. of the principal Act.

4.—(1) For the purpose of calculating the amount of the contribution to the unemployment fund to be made in any year out of moneys provided by Parliament under subsection (6) of section eighty-five of the principal Act, so long as regulations under the principal Act provide for the payment of contributions by means of stamps the sums received in that year on account of such stamps, after deducting any sums which may have been refunded on account of any such stamps, or under subsection (2) of section ninety-nine, or subsection (2) of section one hundred of the principal Act, or section five of this Act, shall be deemed to be, and as from the commencement of the principal Act be deemed to have been, contributions received from employers and workmen in that year.

Calculation of
Treasury con-
tribution to
unemployment
fund.

(2) The like deductions shall be made from the receipts paid into the unemployment fund on income account for the purpose of calculating the amount which may be applied as an appropriation in aid under subsection (2) of section eighty-nine of the principal Act.

5.—(1) As from the fourteenth day of July nineteen hundred and fourteen the following section shall be substituted for section ninety-four of the principal Act :—

Amendment
of s. 94 of
principal Act
as to refunds
to employer.

“(1) The Board of Trade shall, on the application of any employer made in the prescribed manner within two months after the termination of an insurance year, or after such longer period as the Board of Trade may prescribe, refund to such employer as soon as practicable out of the unemployment fund the sum of three shillings in respect of each workman in respect of whom he has paid not less than forty-five contributions during the insurance year :

(2) For the purpose of meeting any change in the insurance year, or for the purpose of making provision for any period which may elapse between the date upon which contributions commence to be payable under this Part of this Act and the commencement of the next ensuing insurance year, the Board of Trade may, so far as necessary for the purpose, apply the provisions of this section to any period less than an insurance year, subject to such proportionate reduction of the number of contributions required and of the sum to be refunded as they may direct, and this section shall take effect as regards any such period of less than an insurance year as so applied.”

(3) In calculating the number of contributions paid by an employer in respect of a workman for the purpose of this section—

- (a) Any contributions which may have been refunded to the employer in respect of the workman under section ninety-six of the principal Act as originally enacted, or from which he may have been exempted under the provisions of this Act substituted for that section, shall be deemed to have been paid ;
- (b) Any contributions paid by the Crown in accordance with section ninety-eight of the principal Act in respect of a workman in training shall be deemed to have been paid by the employer by whom the workman was employed immediately before the training ;
- (c) Where the employer has made an arrangement with the Board of Trade under section ninety-nine of the principal Act he shall, in respect of any contributions paid under the arrangement, be deemed to have paid that number of contributions which he would have been liable to pay if he had not made such an arrangement :

Provided that when the number of contributions paid by the employer would but for this subsection have been less than forty-five, the amount refunded under this section in respect of the workman shall be subject to such proportionate reduction as the Board may direct.

Amendment
of s. 95 of
principal Act.

6.—(1) At the end of subsection (1) of section ninety-five of the principal Act the following proviso shall be added :—

“ Provided that if at the time when contributions first became payable in respect of any workman under this Part of this Act he was over the age of fifty-five, the number of weeks in respect of which contributions are required to be paid by him in order to entitle him or his representatives to such repayments as aforesaid shall be reduced by fifty weeks for every year or part of a year by which his age at that time exceeded fifty-five.”

(2) At the end of the same section, the following subsection shall be added :—

“(3) Where a workman has received a repayment under this section, and has paid further contributions under this Part of this Act, he shall be entitled to a further repayment in accordance with the section if the number of such further contributions exceeds one hundred, and in the case of his death his representatives shall be entitled to such further repayments whatever may be the number of such further contributions.”

7. As from the first day of January nineteen hundred and fifteen the following section shall be substituted for section ninety-six of the principal Act :—

Exemption
from contribu-
tions in respect
of workmen
working short
time.

“(1) Where it appears to the Board of Trade that there is exceptional unemployment in any trade or branch of a trade, the Board may, on application being made in the prescribed manner by any employer in that trade or branch, and on the prescribed conditions being complied with, make an order exempting workmen of any specified class or description employed by him who are systematically working short time, and the employer, from contributions under Part II. of the principal Act, and whilst the order remains in force, and the workmen of the class or description specified in the order systematically work short time in accordance with the order, those workmen and the employer shall be exempt from contributions as if the workmen were not workmen employed in an insured trade.

(2) The Board of Trade may make regulations for giving effect to this section, and in particular for defining ‘short time’ for the purposes of this section; for fixing the maximum period for which an exemption under this section may continue; for requiring an employer to deposit at a labour exchange the unemployment books of the workmen in respect of whom an exemption is claimed, and to pay the prescribed number of contributions, not exceeding two, in respect of every such workman; for cancelling an order under this section if it appears that the conditions of the order are not being complied with, without prejudice however to any liability which the employer may have incurred by reason of non-payment of any contributions whilst such conditions were not complied with.”

8.—(1) Where an employer has been convicted under subsection (2) of section one hundred and one of the principal Act of the offence of failing or neglecting to make any contribution under Part II. of that Act, then, if notice of the intention to do so is served with the summons or warrant, evidence may be given of the failure or neglect on the part of the employer to pay other contributions in respect of the same workman during the year preceding the date when the information was laid, and on proof of such neglect or failure the employer shall be liable to pay to the unemployment fund a sum equal to the total amount of all the contributions which he is so proved to have failed or neglected to pay, which sum when paid shall be treated as a payment in satisfaction of such contributions, and the workman's portion of such contributions shall not be recoverable by the employer from the workman.

Amendment of
s. 101 (2) of
principal Act.

(2) A court of summary jurisdiction in Ireland shall have the same power as a court of summary jurisdiction in England in the case of a person convicted for an offence under subsection (1) of section one hundred and one of the principal Act to impose a fine not exceeding twenty-five pounds instead of imprisonment, if they think that the justice of the case will be better met by a fine than imprisonment.

(3) All proceedings for any contravention or non-compliance with the provisions of Part II. so far as relating to matters under Part II. of the principal Act, or this Act, or the regulations made thereunder, shall in Scotland be instituted and carried on under the provisions of the Summary Jurisdiction (Scotland) Acts, and may be taken at the instance of the procurator fiscal or the Board of Trade.

Recovery of
contributions
from work-
men.

9. An employer shall not be entitled to recover from a workman the amount of any contributions paid by him on behalf of a workman otherwise than by deductions made from the workman's wages, or from any other payment due from him to the workman, nor shall he be allowed to make any such deduction except from wages or other payment in respect of the period, or part of the period, of employment for which the contribution was payable, or in respect of a period of employment ending not later than four weeks after the termination of the period for which the contribution was payable.

Explanation of
s. 103 of prin-
cipal Act.

10. For removing doubts it is hereby declared that in section one hundred and three of the principal Act the expression "workmen in any trade other than an insured trade" includes, and shall be deemed always to have included, any workmen employed otherwise than in an insured trade, and the expression "trade mentioned in the order" shall be construed accordingly.

Amendment of
s. 103 of prin-
cipal Act.

11. At the end of section one hundred and three of the principal Act the following proviso shall be inserted :—

"Provided also that no such order shall contain any variations from the draft order with regard to which an inquiry is held other than such as are approved in writing by the person who held the inquiry."

Amendment of
s. 104 of prin-
cipal Act.

12. Where the Board of Trade, whether before or after the passing of this Act, have made an order under section one hundred and four of the principal Act excluding any occupation from the occupations which are deemed to be occupations in an insured trade any workman shall, on making an application to the Board of Trade for the purpose within six months after the making of the order or the passing of this Act, whichever may be the later, and on satisfying the Board of Trade—

- (a) that the number of contributions paid in respect of him are less than ten ; and
- (b) that by reason of the order he has ceased to be employed in an insured trade ;

be entitled to have repaid to him out of the unemployment fund the amount of the contributions paid by him whilst employed in the occupation so excluded, after deducting the amount of the unemployment benefit, if any, which he may have received; but if at any time after such repayment he becomes entitled to unemployment benefit he shall be treated as if no contributions had been paid in respect of him whilst employed in such occupation.

13.—(1) The Board of Trade shall not make or continue an arrangement with an association under section one hundred and five of the principal Act, unless they are of opinion that the payments authorised by the rules of the association to be made to its members when unemployed (inclusive of any payments in respect of which a refund may be made to the association under the said section) represent a provision for unemployment, as respects such of its members as are workmen in an insured trade, which is at least one-third greater than the provision represented by unemployment benefit under the principal Act.

Amendment of s. 105 of principal Act in respect of arrangements with associations of workmen.

This limitation shall, as regards any payments made by an association to its members in respect of unemployment occurring on or after the twenty-eighth day of September nineteen hundred and fourteen, or such later date as may be fixed by the Board of Trade in any particular case after consultation with the association concerned, be substituted for the limitation imposed by that subsection on the amount to be repaid periodically to an association by reference to three-fourths of the amount of the payments made.

(2) The amount of any sum which, but for section one hundred and five of the principal Act, would have been paid to a workman by way of unemployment benefit shall, for all purposes of Part II. of that Act, be deemed to have been paid, and accordingly subsection (3) of that section shall have effect as if the words “determining whether a workman has exhausted his right to unemployment benefit under” were omitted therefrom and the words “a workman” were substituted for the word “him.”

(3) Regulations may be made under subsection (4) of section one hundred and five of the principal Act for referring questions which may arise under that section to insurance officers and courts of referees as well as to the umpire.

14.—(1) The provisions of section one hundred and six of the principal Act respecting the sums to be excluded in calculating the amounts in respect of which repayments may be made to an association under that section shall be amended as follows:—

Amendment of s. 106 of principal Act.

- (a) The words “and exclusive in the case of payments
“ which exceed twelve shillings a week, of so much
“ of those payments as exceeds that sum” shall be repealed;

- (b) Where it appears to the Board of Trade that the rules of any association are such as to enable persons when unemployed to obtain from the association, or from the association and the unemployment fund together, payments at rates which exceed seventeen shillings a week, the sums which might otherwise be repaid by the Board to the association under the said section shall be subject to such reduction (if any) as the Board may think just :

Provided that, if regulations or rules are made varying the rate of unemployment benefit laid down in the Seventh Schedule to the principal Act, the regulations or rules may make such corresponding variation in the limit of seventeen shillings fixed by this provision as the Board of Trade may think proper :

- (c) Where the association is an association with which the Board of Trade have made an arrangement under section one hundred and five of the principal Act, and the highest rate of weekly payment authorised by the rules of the association to be made to its members, being workmen in an insured trade, when unemployed (inclusive of any payment in respect of which a refund may be made to the association under the said section) is less than thirteen shillings the whole amount of the sum repaid under that section shall not be excluded, but such part thereof only as bears the same proportion to the whole amount as such highest rate of weekly payment bears to thirteen shillings.

(2) This section shall have effect as regards payments made by an association in respect of unemployment occurring on or after the twenty-eighth day of September nineteen hundred and fourteen, or such later date as may be fixed by the Board of Trade in any particular case after consultation with the association concerned.

Amendment of
s. 107 of prin-
cipal Act.

15.—(1) The definition of “workman” in section one hundred and seven of the principal Act shall include any person employed under a local or other public authority who would have been a workman within the meaning of that section if the contract with the authority had been a contract of service.

(2) In section one hundred and seven of the principal Act, at the end of the paragraph defining the conditions under which a workman is not to be deemed to be unemployed, the following words shall be inserted :—“ unless such other occupation has ordinarily been followed by the workman in addition to his employment in an insured trade and outside the ordinary working hours of such trade, and the rate of

“ remuneration received therefrom does not exceed one pound
“ a week.”

16. Anything required or authorised under Part II. of the principal Act to be done by, to or before the Board of Trade may be done by, to or before the President or a Secretary or Assistant Secretary of the Board or any person authorised in that behalf by the President of the Board.

Power of President, &c., to act for Board of Trade.

17.—(1) So much of the Seventh Schedule of the principal Act as prohibits workmen from receiving within any period of twelve months unemployment benefit for more than fifteen or such other number of weeks as may be prescribed shall have effect as if for the reference to any period of twelve months there were substituted a reference to an insurance year.

Amendment of Seventh Schedule of principal Act.

(2) A workman in respect of whom no contributions have been paid before the passing of this Act shall not be entitled under proviso (a) to the fourth paragraph in the Seventh Schedule of the principal Act to any addition to the number of contributions which he has actually paid.

18.—(1) This Act may be cited as the National Insurance (Part II. Amendment) Act, 1914, and shall be construed as one with Part II. of the principal Act; and the National Insurance Acts, 1911 and 1913, and this Act may be cited together as the National Insurance Acts, 1911 to 1914.

Short title and construction.

(2) For the purposes of this Act the expression “insurance year” means such period of not less than fifty-two nor more than fifty-three weeks as may be prescribed.

CHAPTER 58.

An Act to diminish the number of cases committed to prison, to amend the Law with respect to the treatment and punishment of young offenders, and otherwise to improve the Administration of Criminal Justice.

[10th August 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Fines, Fees, &c.

1.—(1) A warrant committing a person to prison in respect of non-payment of a sum adjudged to be paid by a conviction of a court of summary jurisdiction shall not be issued forthwith unless the court which passed the sentence is satisfied that he

Obligation to allow time for payment of fines